

CONNOLLY v DE LA CRUZ

23CV46549

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

This civil action stems from a lengthy and ongoing dispute concerning the upkeep and maintenance of an easement with associated drainage improvements, including culverts and ditches. Plaintiff Mark V. Connolly ("Plaintiff") filed this action to determine the parties' respective rights and duties, as well as to Quiet Title to an interest in land entitled the Cain Easement (a 161/2 foot strip of land north of the Cain Ranch property line) ("Cain Easement.") Plaintiff claims the Cain Easement is for cattle herding and grazing.

Defendant filed a cross-complaint to remove obstructions within the easement. The Court previously granted permission for Defendant to remove obstructions that were blocking the Cain Easement.

Now before the Court is Plaintiff's motion for preliminary injunction to prevent destruction of the grass used for grazing in the Cain Easement. Defendant has not filed an opposition. The lack of opposition may be construed by the Court as a concession that the motion has merit. (*Klaisle v. Zhao*, 2016 Cal. Super. LEXIS 21717; *Wildly v. Realty*, 2024 Cal. Super. LEXIS 45065 (failure to oppose may be viewed as abandoning a claim.)) [The Court notes defendant's counsel filed a document entitled "Declaration re Status of Settlement Agreement Communications that includes a couple of paragraphs addressing the motion before the Court. However, the Court finds in the form submitted the document does not amount to an "Opposition" and, furthermore, the comments regarding cows' preferences for various grasses are tantamount to gratuitous comments as the declaration contains no foundational elements to establish that counsel is qualified to render expert grazing opinions.]

I. Background Facts and Relevant Procedural History

Plaintiff owns APN parcels 048-025-034 and 050-002-120, commonly and collectively referred to as Cain Ranch (and hereinafter referred to as "the Ranch"). The Ranch was previously burdened by a 16.5 foot prescriptive easement belonging to Linkletter Properties for ingress and egress to adjacent property (with the right to erect a fence with a gate), but Plaintiff maintained a co-equal easement over a similar strip for cattle grazing and herding ("Grazing Easement.") According to Plaintiff, the dueling co-equal

easements were unburdened by judgment, merger and eventual extinguishment. Despite the loss of said easement, Defendant accessed the strip and removed a portion of the perimeter fence restraining cattle from roaming free.

Defendant owns APN 048-051-034 and is the elected road manager at Valley Hills Estates. According to Defendant, the aforementioned easement overlaps a 60-foot right of way in the referenced subdivision parcel map. Defendant filed a cross-complaint to allow for the removal of naturally occurring obstructions due to a tree falling and man-made obstruction of a gate and post within the easement.

On April 7, 2025, the parties had a settlement conference. (Declaration of Mark A. Connolly (“Connolly Decl.”) ¶ 4.) Plaintiff filed a Settlement Conference Statement setting forth title history showing that the Easement was not servient to any rights Defendant may possess. (*Ibid.*) A further settlement conference was scheduled for May 12, 2025. (*Ibid.*) That conference was continued until July 21, 2025.

According to Plaintiff, he informed Defendant’s counsel that Defendant could not mow the easement on both April 15, 2025 and April 17, 2025. (Connolly Decl. ¶ 5.) Defendant’s counsel indicated that grass in certain areas of the work project would be affected but that “No one has suggested or even thought about doing anything to the grass in the rest of the grazing easement.” (*Id.*, Ex. A p. 12.) Thereafter, the Defendant allegedly mowed the grass on the Easement, thereby destroying the opportunity for grazing. (*Id.* ¶ 17.)

Plaintiff asserts that he is shortly going to have cattle on the Cain Ranch and Easement, and cannot risk the Defendant damaging fences, leaving gates open, wandering the easement with cattle or further destroying the grazing by mowing. (Connolly Decl. ¶ 19.)

II. Legal Standard and Discussion

When determining whether to issue a preliminary injunction, the court considers two interrelated questions: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; *see also Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 206; Code Civ. Proc., § 526.)

A. Likelihood of Prevailing on the Merits

Plaintiff's complaint brings causes of action for declaratory relief, private nuisance, and quiet title. At the heart of each of these causes of action is Plaintiff's contention that the Defendants have no easement rights and should not be accessing any portion of the Cain Ranch.

In previous rulings, the Court has already determined that Defendant has a valid easement for ingress and egress and has authorized Defendant to make repairs related to that easement. Thus, Plaintiff is unlikely to prevail on the causes of action where the underlying contention in the Complaint that Defendant has no easement rights. This is not to say that Plaintiff may not *ultimately* prevail on his claims, only that at this point the Court cannot determine that he is more likely to prevail on his claims than Defendant.

However, Plaintiff is likely to prevail on the underlying fact that the Cain Easement allows for grazing of his cattle and that Defendant cannot unreasonably interfere with the land.

B. Balance of Harm to the Parties

The Court must next look at the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554.) "[T]he more likely it is that [applicant] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue." (*King v. Meese* (1987) 43 Cal. 3rd 1217, 1227.) The general purpose of a preliminary injunction is often to preserve the status quo. (*Harbor Chevrolet Corp. v. Machinists Local Union 1484* (1959) 173 Cal.App.2d 380, 384.)

Plaintiff's motion seeks a return to the status quo whereby the Cain Easement is not mowed but is instead left undisturbed so that Plaintiff may let his cattle graze thereon. Plaintiff argues that he needs an injunction to ensure that Defendant does not continue to mow the grass, or erect or destroy fencing which could endanger the safety of the cattle.

Defendant has not brought an opposition nor provided any evidence that it will be harmed by being prevented from mowing the Cain Easement (taking into account the Court's comments as to defense counsel's filed Declaration).

III. Conclusion

Plaintiff's motion for preliminary injunction is **GRANTED**. Defendant is enjoined from mowing the grass on the Cain Easement. Defendant is further enjoined from taking any steps that would unreasonably interfere with the Plaintiff's ability to use the easement for cattle grazing.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order in conformity with the Ruling and complying with Rule of Court 3.1312.

BLANCO v NEW MELONES LAKE MARINA, LLC, et al

23CV46842

DEFENDANTS BRADEN'S MOTION FOR GOOD FAITH SETTLEMENT

This case involves personal injury incurred during a boating incident. Now before the Court is a motion for good faith settlement brought by Defendants/Cross-Complainants Richard and Jamie Braden. The motion is opposed by Defendant New Melones Lake Marina ("Marina"), primarily on the grounds that the proposed settlement does not reflect the Bradens' proportionate liability nor Marina's claims for contractual indemnity.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to